

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #08	CCRB Case #: 202104647	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/04/2021 5:27 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/4/2023	Precinct: 73		
Date/Time CV Reported Thu, 08/05/2021 9:15 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 08/05/2021 9:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Mdabdul Halim	15322	956714	073 PCT
2. POM Orkhan Mamedov	01393	965787	073 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Antonio Exposito	15718	969065	073 PCT
2. POM Nicholas Gluth	07905	966079	073 PCT
3. SGT Essence Mcdonald	03372	949300	073 PCT
4. POM Brendan Tener	12665	970886	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mdabdul Halim	Discourtesy: Police Officer Mdabdul Halim spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B . POM Mdabdul Halim	Abuse: Police Officer Mdabdul Halim entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C . POM Orkhan Mamedov	Abuse: Police Officer Orkhan Mamedov entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
D . POM Orkhan Mamedov	Abuse: Police Officer Orkhan Mamedov threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
E . POM Orkhan Mamedov	Off. Language: Police Officer Orkhan Mamedov made offensive remarks to § 87(2)(b)	§ 87(2)(b)
F . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	§ 87(2)(b)
G . POM Mdabdul Halim	Force: Police Officer Mdabdul Halim used physical force against § 87(2)(b)	§ 87(2)(b)
H . POM Orkhan Mamedov	Abuse: Police Officer Orkhan Mamedov threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
I . POM Orkhan Mamedov	Force: Police Officer Orkhan Mamedov used physical force against § 87(2)(b)	§ 87(2)(b)
J . POM Orkhan Mamedov	Abuse: Police Officer Orkhan Mamedov entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K . POM Mdabdul Halim	Abuse: Police Officer Mdabdul Halim entered § 87(2)(b) in Brooklyn.	
L . POM Orkhan Mamedov	Discourtesy: Police Officer Orkhan Mamedov spoke discourteously to § 87(2)(b)	
M . POM Mdabdul Halim	Abuse: Police Officer Mdabdul Halim forcibly removed § 87(2)(b) to the hospital.	
N . POM Orkhan Mamedov	Abuse: Police Officer Orkhan Mamedov forcibly removed § 87(2)(b) to the hospital.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's online website on August 5, 2021.

On the afternoon of August 4, 2021, § 87(2)(b) (husband) called 911 to report that he had been threatened by and then had fought with an unidentified male. At 5:27 PM, PO Mdabbul Halim and PO Orkhan Mamedov of the 73rd Precinct responded to § 87(2)(b) and § 87(2)(b) home, located at § 87(2)(b) in Brooklyn.

PO Halim and PO Mamedov spoke with § 87(2)(b) and § 87(2)(b) inside of their apartment. Also present was § 87(2)(b) and § 87(2)(b) eight-year-old daughter, § 87(2)(b). PO Halim allegedly said to § 87(2)(b) "We don't have to put up with this bullshit" (**Allegation A: Discourtesy**, § 87(2)(g)). PO Halim and PO Mamedov then allegedly refused to exit the apartment when § 87(2)(b) asked them to leave (**Allegations B and C: Abuse of Authority**, § 87(2)(g)). PO Mamedov pointed his Taser at § 87(2)(b) as § 87(2)(b) exited the apartment (**Allegation D: Abuse of Authority**, § 87(2)(g)). PO Mamedov then allegedly said to § 87(2)(b) that § 87(2)(b) was a "mental case" (**Allegation E: Offensive Language**, § 87(2)(g)).

PO Mamedov and PO Halim followed § 87(2)(b) out of the apartment, into the hallway. There, an officer allegedly said that § 87(2)(b) would be arrested (**Allegation F: Abuse of Authority**, § 87(2)(g)). PO Halim then allegedly attempted to punch § 87(2)(b) (**Allegation G: Force**, § 87(2)(g)). As § 87(2)(b) retreated into the apartment, PO Mamedov again pointed his Taser at § 87(2)(b) (**Allegation H: Abuse of Authority**, § 87(2)(g)). PO Mamedov then pushed § 87(2)(b) away from the apartment door (**Allegation I: Force**, § 87(2)(g)).

PO Halim and PO Mamedov then reentered the apartment (**Allegations J and K: Abuse of Authority**, § 87(2)(g)) where PO Mamedov again pointed his Taser at § 87(2)(b) (also **Allegation H: Abuse of Authority**, § 87(2)(g)). The officers then handcuffed § 87(2)(b) and removed him from the apartment to an ambulance waiting outside.

Outside of the building, § 87(2)(b) complained to PO Mamedov that she believed the officers' Body-Worn Cameras had not been activated. PO Mamedov allegedly replied that only his "fucking sergeant" could tell him what to do (**Allegation L: Discourtesy**, § 87(2)(g)).

§ 87(2)(b) was involuntarily removed to a hospital for psychiatric evaluation (**Allegations M and N: Abuse of Authority**, § 87(2)(g)). Neither he nor § 87(2)(b) was arrested.

The investigation obtained surveillance video from § 87(2)(b) which does not include audio, and BWC videos recorded by PO Halim and PO Mamedov. § 87(2)(g), § 87(4-b)

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Mdabbul Halim spoke discourteously to § 87(2)(b).

§ 87(2)(b) stated that as he spoke with the officers inside of the apartment, he asked PO Mamedov to step away from him because PO Mamedov was not wearing a face mask. § 87(2)(g)

§ 87(2)(b) then asked the officers to activate their body-worn cameras, which they refused. § 87(2)(b) then asked for the officers' supervisor, but they appeared annoyed with this request. PO Halim then said to § 87(2)(b) "We don't have to put up with this shit."

§ 87(2)(b) stated that as § 87(2)(b) described his earlier altercation with an unidentified male, PO Halim interrupted by saying, "We ain't got time for this bullshit."

PO Halim denied making the remarks in question and denied using any profanity in conversation with § 87(2)(b). PO Mamedov also denied hearing PO Halim use any profanity. The officers described § 87(2)(b) growing increasingly agitated during this conversation but they did not describe any complaint he made regarding masks, body-worn cameras, or their supervisor.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Mdabdul Halim entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Police Officer Orkhan Mamedov entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) and § 87(2)(b) both stated that after PO Halim used profanity, § 87(2)(b) said to the officers that their services were no longer needed and that they could leave the apartment. However, the officers stood still and did not exit.

PO Halim and PO Mamedov both stated that they did not recall § 87(2)(b) saying that he no longer required police assistance or that he wanted them to leave the apartment.

The first six seconds of PO Mamedov's BWC video (Board Review 02) do not include audio, but the video shows § 87(2)(b) appearing to yell angrily at the officers as he exits the apartment. PO Halim and PO Mamedov reviewed this portion of video during their CCRB interviews. PO Halim stated that he did not recall what § 87(2)(b) was saying during this portion of video. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Orkhan Mamedov threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that when § 87(2)(b) exited the apartment, she saw that PO Mamedov had drawn his Taser. Neither § 87(2)(b) nor § 87(2)(b) testified that PO Mamedov pointed his Taser at § 87(2)(b) at this time. However, the first seven seconds of PO Mamedov's BWC

video show that PO Mamedov pointed his Taser at § 87(2)(b) as § 87(2)(b) exits the apartment (Board Review 02).

§ 87(2)(b) stated that before the events captured at the beginning of PO Mamedov's BWC video, § 87(2)(b) spoke to the officers about the earlier altercation about which he wished to file a complaint. § 87(2)(b) was relatively calm while speaking with the officers. He expressed his frustration with the man he had fought, and his volume grew as he told his story, but he did not do anything to suggest that he posed a threat to the officers or to anyone else.

§ 87(2)(b) did not describe his outward demeanor during these interactions but as noted above, he was unhappy that PO Mamedov was not wearing a face mask and that the officers had not appeared to activate their body-worn cameras. He was also upset that the officers refused to leave the apartment when asked.

PO Mamedov and PO Halim both stated that § 87(2)(b) became agitated as he described the earlier altercation. He clenched his fists and said several times, "I don't know what I'm going to do." According to PO Halim, the officers asked § 87(2)(b) what he meant he might do, but he only replied that did not know what to do and that the man he had fought was threatening his family. § 87(2)(b) also expressed that he did not like police officers. PO Halim stated that he began to feel threatened due to this combination of behaviors.

PO Mamedov's BWC video begins at the conclusion of this conversation when § 87(2)(b) exited the apartment (Board Review 02). At the beginning of the video – which does not include audio – § 87(2)(b) stands in the doorway, appearing to shout down the hallway. He then turns toward the officers and appears to address them, possibly yelling. § 87(2)(b) then uses the palms of both hands to slap the open door in apparent frustration. Immediately afterward, at the five and six second marks, PO Mamedov raises his Taser, pointing it at § 87(2)(b).

PO Mamedov reviewed the pertinent portion of BWC video during his CCRB interview and stated that he pointed his Taser at § 87(2)(b) at this time because § 87(2)(b) was yelling and behaving aggressively, and because he looked as though he was about to initiate a physical altercation. PO Mamedov therefore pointed his Taser at § 87(2)(b) for his own safety.

According to NYPD Patrol Guide Procedure 221-01 (Force Guidelines), an officer may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Further, any application or use of force must be reasonable under the circumstances (Board Review 03). NYPD Patrol Guide Procedure 221-08 (Use of CEWs) states that a CEW should only be used against persons who are actively resisting or exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons who are present. This procedure defines "active aggression" as the threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent (Board Review 04).

PO Mamedov's BWC video confirms the officers' testimonies that § 87(2)(b) was angry and yelled. Additionally, he slapped the door in frustration. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Offensive Language: Police Officer Orkhan Mamedov made offensive remarks to § 87(2)(b)

§ 87(2)(b) stated that after § 87(2)(b) exited the apartment, PO Mamedov said to her that § 87(2)(b) was a “mental case.”

PO Mamedov denied ever saying to § 87(2)(b) that § 87(2)(b) was a “mental case.” He denied commenting about § 87(2)(b) mental state at all when § 87(2)(b) exited the apartment.

PO Halim also denied hearing PO Mamedov refer to § 87(2)(b) as a “mental case” and did not recall PO Mamedov making any statement about § 87(2)(b) mental state.

As noted, neither PO Halim nor PO Mamedov’s BWCs were activated during the conversation in question (Board Review 01 and 02).

Although (as addressed below in the analyses of Allegations M and N) PO Mamedov and PO Halim ultimately had § 87(2)(b) transported involuntarily to a hospital, § 87(2)(g)

Allegation (F) Abuse of Authority: An officer threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that after he exited the apartment, PO Halim and PO Mamedov followed him into the hallway. There, one of the officers announced that § 87(2)(b) would be placed under arrest, or some similar remark. § 87(2)(b) asked, “For what?” He did not remember the officers’ response. He also did not remember who made this remark.

§ 87(2)(b) did not allege that either officer ever said that § 87(2)(b) could be arrested.

PO Mamedov and PO Halim both denied that either officer told § 87(2)(b) that he could be arrested. As addressed in the analyses of Allegations M and N, below, the officers described their mutual concerns regarding § 87(2)(b) mental state and ultimately removed him to a hospital. However, they never intended to arrest him and stated that when they followed him into the hallway, he had not committed any offense for which he could have been arrested.

As noted above, § 87(2)(b) was not ultimately placed under arrest or charged with any crime.

PO Mamedov’s BWC videos begin when the officers followed § 87(2)(b) out of the apartment and into the hallway, but the video does not include audio during this portion of the incident (Board Review 02). PO Halim’s BWC video begins later, after § 87(2)(b) reentered his apartment (Board Review 01).

§ 87(2)(g)

Allegation (M) Abuse of Authority: Police Officer Mdabdul Halim forcibly removed § 87(2)(b) to the hospital.

Allegation (N) Abuse of Authority: Police Officer Orkhan Mamedov forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) and PO Halim engaged in a brief physical altercation. It is also undisputed that under PO Halim and PO Mamedov's authority, § 87(2)(b) was then handcuffed and transported involuntarily to a hospital for psychiatric evaluation. However, the civilians and officers provided differing accounts of how the altercation in question began.

§ 87(2)(b) and § 87(2)(b) both testified that it was PO Halim initiated a physical altercation with § 87(2)(b).

As noted above, before the situation escalated, § 87(2)(b) and the officers spoke in the apartment. This conversation was not captured on BWC. § 87(2)(b) stated that § 87(2)(b) was relatively calm while speaking with the officers. He expressed frustration with the man he had fought, and his volume grew as he told the story, but he did not do anything to suggest that he posed a threat to the officers or to anyone else. § 87(2)(b) also stated that he was unhappy about PO Mamedov not wearing a face mask and because the officers had not appeared to activate their body-worn cameras.

§ 87(2)(b) exited the apartment and asked the building security guards stationed near the building's entrance, at the end of the hall, to come to his apartment and stand witness to his interaction with the officers. When the security guards refused to follow him, § 87(2)(b) became upset and yelled at them. § 87(2)(b) described his demeanor as "agitated," "boisterous," and "loud."

The investigation did not identify or obtain a statement from a security guard who may have been present.

§ 87(2)(b) stated that PO Halim and PO Mamedov then then exited the apartment and approached him in the hallway. One of the officers announced that § 87(2)(b) would be placed under arrest, or some similar remark. § 87(2)(b) moved toward his apartment door, but PO Mamedov moved behind him while PO Halim blocked his path.

§ 87(2)(b) and § 87(2)(b) stated that suddenly, PO Halim threw a punch at § 87(2)(b). § 87(2)(b) did not know what physical action on § 87(2)(b) part might have precipitated this. § 87(2)(b) stated that he was walking away from the officers, approaching his apartment door, when PO Halim threw a punch at him. § 87(2)(b) had not been physically aggressive to either officer before PO Halim attempted to strike him. § 87(2)(b) dodged PO Halim's punch. He pushed PO Halim away instinctively and then attempted to punch PO Halim but missed.

PO Mamedov and PO Halim, by contrast, testified that § 87(2)(b) was sent to a hospital because he became violent in the hallway. Both officers stated that when they first spoke with § 87(2)(b) within the apartment, he grew agitated while describing his earlier altercation. He clenched his fists and said several times, "I don't know what I'm going to do." As stated, according to PO Halim, the officers asked § 87(2)(b) what he meant he might do, but he only replied that did not know what to do and that the man he had fought was threatening his family. § 87(2)(b) also expressed that he did not like police officers. PO Halim stated that he began to feel threatened due to this combination of behaviors. Both officers stated that at this point, they did not believe that

§ 87(2)(b) required emergency psychiatric evaluation.

However, according to the officers, when they approached § 87(2)(b) in the hallway, § 87(2)(b) attempted to strike PO Halim. (PO Halim described a kick, whereas PO Mamedov described a punch.) This was when they determined that § 87(2)(b) required psychiatric evaluation, and not before.

PO Mamedov stated that because § 87(2)(b) was violent with the officers, PO Mamedov feared he might also become violent with someone else. § 87(2)(b) had previously said, “I don’t know what I’m going to do,” which further led PO Mamedov to believe that § 87(2)(b) might be a danger to himself or others. For these reasons, PO Mamedov believed § 87(2)(b) needed to be removed to a hospital for evaluation. PO Halim also believed that because § 87(2)(b) had become violent with officers, he might pose threat to himself and others.

Neither officer’s BWC video was activated during the officers’ conversation with § 87(2)(b) inside of the apartment. PO Mamedov’s BWC video (Board Review 02) captured the beginning of the altercation between § 87(2)(b) and PO Halim. (PO Halim’s BWC was not yet active.) As addressed above, at the beginning of PO Mamedov’s BWC video, § 87(2)(b) appears upset with the officers and slaps the door as he exits the apartment. The officers follow § 87(2)(b) into the hallway. Between 30 seconds and 42 seconds, PO Mamedov appears to make a radio communication, but the video does not include audio at this time. § 87(2)(b) then walks past the officers toward his apartment door. At the 48 second mark, as § 87(2)(b) returns to his apartment, he turns his back to the officers. PO Halim advances quickly toward § 87(2)(b) with both arms outstretched and attempts to take hold of § 87(2)(b) with a two-hand grab. § 87(2)(b) turns, sees PO Halim approaching, and sidesteps PO Halim’s grab. § 87(2)(b) then kicks at PO Halim before reentering the apartment, shouting at the officers to “leave,” and closing the door.

This BWC video shows that, counter to the officers’ testimonies, it was PO Halim who initiated a physical altercation with § 87(2)(b). PO Halim lunged at § 87(2)(b) and attempted a two-hand grab while § 87(2)(b) back was turned. In response, § 87(2)(b) attempted to kick PO Halim away.

PO Halim reviewed this portion of BWC video during his CCRB interview. He stated that he attempted to take hold of § 87(2)(b) to handcuff him because § 87(2)(b) was “going crazy” and making threats, and because he needed to go to the hospital. When asked about the nature of the alleged threats – not previously mentioned during PO Halim’s interview – PO Halim described § 87(2)(b) saying that the building security guards were not doing their jobs and that he would “do something” if they did not help him. Per PO Halim, § 87(2)(b) did not say specifically what he would do to the security guards. PO Mamedov never described § 87(2)(b) making any threat toward a security guard.

As noted, between 30 seconds and 42 seconds of PO Mamedov’s BWC video – before the altercation between § 87(2)(b) and PO Halim – PO Mamedov appears to make a radio communication, but the video does not include audio at this time (Board Review 02). PO Mamedov stated that at this time, he was calling for additional units. He did not remember whether he reported via radio that he was dealing with an “EDP” [Emotionally Disturbed Person]. The time stamp corresponding to the radio communication in the BWC video is 17:31:27 to 17:31:39. An Event report pertaining to this incident reveals that at 17:31:50, a dispatcher noted, “BUS FOR EDP AT LOC” (Board Review 05). The investigation also obtained a recording of the pertinent radio communications, which confirm that PO Mamedov reported the presence of an “EDP” at 17:31

(Board Review 06 for audio; Board Review 07 for summary).

NYPD Patrol Guide Procedure 221-13 (Board Review 08) defines an “emotionally disturbed person” as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. This procedure instructs that when officers encounter an emotionally disturbed person whose actions constitute an immediate threat of serious harm to himself or others, officers should take reasonable measures to terminate or prevent such behavior and make every effort to de-escalate the situation through tactical communication. Officers should have the individual removed to a hospital in an ambulance, and restraining equipment including handcuffs may be used if the individuals resist.

PO Halim and PO Mamedov stated that they had § 87(2)(b) removed to a hospital because he became violent with PO Halim. However, PO Mamedov’s BWC video, the Event report, and the radio communications reveal that PO Halim and PO Mamedov made the decision to remove § 87(2)(b) to a hospital before the physical altercation between § 87(2)(b) and PO Halim. Additionally, PO Mamedov’s BWC video reveals that § 87(2)(b) was walking away from the officers, apparently returning to his apartment, when PO Halim lunged at him. § 87(2)(b) kicked at PO Halim only after PO Halim initiated a physical altercation by attempting to grab him.

§ 87(2)(g)

§ 87(2)(g)

PO Mamedov’s BWC video shows § 87(2)(b) slamming the apartment door in apparent frustration, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

Allegation (G) Force: Police Officer Mdabdul Halim used physical force against § 87(2)(b).

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both stated that when PO Halim approached § 87(2)(b) in the hallway, PO Halim suddenly threw a punch at § 87(2)(b) but missed.

PO Mamedov's BWC video reveals after the 48 second mark that as § 87(2)(b) returned to his apartment, PO Halim advanced toward him and attempted to take hold of § 87(2)(b) with a two-hand grab (Board Review 02). The video does not show PO Halim ever attempting to punch § 87(2)(b). PO Halim reviewed this portion of BWC and confirmed that he was attempting to grab, rather than punch him.

§ 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Orkhan Mamedov threatened § 87(2)(b) with the use of force.

It is undisputed that PO Mamedov pointed a Taser at § 87(2)(b).

§ 87(2)(b) stated that just before PO Halim attempted to strike him, PO Mamedov drew his Taser and pointed the Taser at § 87(2)(b). § 87(2)(b) positioned herself between PO Mamedov and § 87(2)(b) and PO Mamedov reached over her, continuing to point the Taser at § 87(2)(b). § 87(2)(b) stated that PO Mamedov pointed his Taser at § 87(2)(b) after PO Halim attempted to strike § 87(2)(b) and after § 87(2)(b) kicked at PO Halim. § 87(2)(b) and § 87(2)(b) also stated that when PO Mamedov subsequently entered the apartment (addressed below in the analyses of Allegations J and K), his Taser was still drawn, but they did not describe PO Mamedov pointing the Taser at that time.

PO Mamedov's BWC video shows at 48 seconds that when PO Halim approached to take hold of § 87(2)(b) kicked at PO Halim (Board Review 02). At 51 seconds, PO Mamedov's hands are visible, and he does not hold a Taser. When PO Mamedov's left hand reappears at 54 seconds, he holds a Taser, which he attempts to point over § 87(2)(b) at § 87(2)(b). § 87(2)(b) enters the apartment, yells at the officers to leave, and closes the apartment door. When § 87(2)(b) opens the apartment door after the 2-minute mark, PO Mamedov orders him to turn around. § 87(2)(b) does not comply, and PO Mamedov again points his Taser at § 87(2)(b). PO Mamedov then follows § 87(2)(b) into the apartment (addressed below), still pointing his Taser at § 87(2)(b). § 87(2)(b) retreats into a bedroom and closes the door. When he exits the bedroom at 2 minutes 45 seconds, PO Mamedov again orders § 87(2)(b) to turn around and points the Taser at § 87(2)(b). PO Mamedov lowers the Taser at 2 minutes 57 seconds, when § 87(2)(b) turns around and PO Halim begins to place him in handcuffs.

PO Mamedov acknowledged pointing a Taser at § 87(2)(b). He stated that he did so because § 87(2)(b) behaved violently and aggressively. Upon entering the apartment, he pointed the Taser as a precautionary measure due to § 87(2)(b) earlier violent behavior.

According to NYPD Patrol Guide Procedure 221-01 (Force Guidelines), an officer may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Further, any application or use of force must be reasonable under the circumstances (Board Review 03). Per NYPD Patrol Guide Procedure 221-08, a CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. This procedure notes that the use of a CEW will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical (Board

Review 04).

PO Mamedov pointed a Taser at § 87(2)(b) immediately after § 87(2)(b) attempted to kick PO Halim. He pointed it again when § 87(2)(b) reopened the apartment door shortly afterward and refused to turn around, and again when § 87(2)(b) exited a bedroom and refused to turn around. PO Mamedov then lowered the Taser when § 87(2)(b) turned around and allowed PO Halim to handcuff him. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (I) Force: Police Officer Orkhan Mamedov used physical force against § 87(2)(b).

Allegation (J) Abuse of Authority: Police Officer Orkhan Mamedov entered § 87(2)(b) in Brooklyn.

Allegation (K) Abuse of Authority: Police Officer Mdabdul Halim entered § 87(2)(b) in Brooklyn.

It is undisputed that after § 87(2)(b) reentered the apartment and closed the door, § 87(2)(b) stood in front of the door; that PO Mamedov pushed § 87(2)(b) aside to move her from the doorway; and that when § 87(2)(b) opened the apartment door, both PO Halim and PO Mamedov entered the apartment, where they handcuffed § 87(2)(b).

PO Mamedov stated that after fighting with PO Halim, § 87(2)(b) ran into the apartment and closed the door, locking himself inside. § 87(2)(b) stood in front of the door, attempting to prevent the officers from entering the apartment. However, PO Mamedov wished to enter the apartment because § 87(2)(b) was acting violently and posed a risk of harm to himself. As such, he needed to be removed to a hospital for psychiatric evaluation. Additionally, § 87(2)(b) and § 87(2)(b) daughter was in the apartment, and § 87(2)(b) might pose a risk of harm toward her. § 87(2)(b) daughter was crying, which PO Mamedov thought might “trigger” § 87(2)(b). PO Mamedov moved § 87(2)(b) from the doorway to access the apartment, and because he was holding his Taser and did not want to accidentally discharge it at § 87(2)(b). Then, when § 87(2)(b) again opened the apartment door, PO Mamedov entered the apartment so to handcuff § 87(2)(b) and remove him to a hospital for psychiatric evaluation. There was no other reason PO Mamedov entered the apartment.

PO Halim also believed it was necessary to enter the apartment because § 87(2)(b) had become violent with officers. Additionally, he might pose a threat to himself and others, as he had repeatedly said, “I don’t know what I’m doing to do.” (As addressed, PO Halim stated that when the officers asked § 87(2)(b) what he meant he might do, but he only replied that did not know what to do and that the man he had fought was threatening his family.) There was no further indication that § 87(2)(b) posed a threat to himself or others. PO Halim did not enter § 87(2)(b) apartment for any other reason.

PO Mamedov’s BWC video shows him pushing § 87(2)(b) from the doorway at 60 seconds and captures the entry between 2 minutes and 3 minutes 15 seconds (Board Review 02). PO Halim’s BWC video captures the entry between 30 seconds and 1 minute 40 seconds (Board Review 01).

People v. Mitchell 39 N.Y.2d 173 (1976) established the “emergency doctrine,” according to which

officers may make warrantless entry where 1) the police have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, 2) the search is not primarily motivated by intent to arrest and seize evidence, and 3) there exists some reasonable basis to associate the emergency with the area or place to be entered and/or searched (Board Review 09). (Note that the ruling in *Mitchell* is questioned in part by *Brigham City v. Stuart*, 547 U.S. 398 [2006], which rejected the stipulation that entry be unrelated to intent to arrest. However, that disagreement is irrelevant here, where no arrest was involved.)

Additionally, NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (Board Review 03).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] BWC video reveals that he became violent in response to PO Halim attempting to handcuff him and bring him to a hospital. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation (L) Discourtesy: Police Officer Orkhan Mamedov spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that outside of the building, she approached PO Mamedov and complained that he had not activated his BWC during this incident. PO Mamedov replied that only his “fucking sergeant” could tell him what to do. § 87(2)(b) and PO Mamedov were standing near the ambulance when PO Mamedov said this. Per § 87(2)(b) was already inside of the ambulance. § 87(2)(b) for his part, did not describe any such interaction.

The investigation obtained statements from FDNY EMTs § 87(2)(b) and § 87(2)(b) who responded to this incident. EMT § 87(2)(b) stated that EMT § 87(2)(b) remained at the door to the ambulance while EMT § 87(2)(b) was in the rear of the ambulance with § 87(2)(b). § 87(2)(b) spoke with EMT § 87(2)(b) outside of the ambulance, but EMT § 87(2)(b) never saw § 87(2)(b) speak with any officer. He did not hear any officer say, “Only my

fucking sergeant can tell me what to do,” or make any similar remark. EMT § 87(2)(b) confirmed that he spoke with § 87(2)(b) but he did not see her speaking with any officer. EMT § 87(2)(b) also did not see any officer say to her, “Only my fucking sergeant can tell me what to do,” or any similar interaction. However, EMT § 87(2)(b) was not able to see every interaction § 87(2)(b) had on scene, as EMT § 87(2)(b) went into the ambulance at some point.

PO Mamedov stated that when § 87(2)(b) was taken to an ambulance outside, § 87(2)(b) approached him and PO Halim and accused them of having failed to activate their BWCs. PO Mamedov explained that they needed to activate their BWCs for certain instances, and that they activated them during this incident when they needed to. He denied saying, “Only my fucking sergeant can tell me what to do,” or otherwise using profanity toward § 87(2)(b).

PO Halim did not recall § 87(2)(b) expressing any concerns that the officers had not activated their BWCs. He denied hearing PO Mamedov make the alleged remark or use profanity toward § 87(2)(b).

Neither PO Halim’s nor PO Mamedov’s BWC videos captured any such interaction with § 87(2)(b) (Board Review 01 and 02). The BWC videos end after the officers bring § 87(2)(b) into the ambulance. Additionally, no BWC video recorded by any other responding officer captured the interaction in question.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which either § 87(2)(b) or § 87(2)(b) has been a party (Board Review 11 and 12).
- PO Halim has been a member of service for seven years and has been a subject in two other complaints with five allegations, none of which have been substantiated. § 87(2)(g)
- PO Mamedov has been a member of service for three years and has been a subject in four other complaints with 16 allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint could not be mediated to a COVID-related backlog of mediation cases.
- As of January 11, 2022, the Office of the Comptroller had no record if any Notice of Claim filed regarding this incident (Board Review 15).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 8

Investigator: Samuel Ross SI Samuel Ross 01/06/2022
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 1/6/2022
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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